

The demurrer to the first cause of action is **SUSTAINED, WITHOUT LEAVE TO AMEND**, as to the individual named defendants. Labor Code section 1102.5 imposes liability on an employer and does not impose personal liability on individual employees. As amendment would be futile, the demurrer is sustained without leave to amend.

The demurrer to the second cause of action is **OVERRULED**. Read as a whole, and considering Defendants' equal or superior knowledge, the complaint sufficiently pleads the second cause of action. Defendants have notice of the basic facts and nature of the claim, including the substance of the statements at issue. Any evidentiary gaps can be remedied through discovery.

Motion to Strike Treble Damages from Plaintiff's Complaint

Defendant's motion to strike treble damages from Plaintiff's complaint is GRANTED IN PART AND DENIED IN PART.

As to Defendant Merced Community College District, the motion is GRANTED WITHOUT LEAVE TO AMEND as the Court finds the treble damages to be punitive in nature. As punitive damages are not available against a government entity the motion is granted without leave to amend.

Accordingly, the Court strikes from the complaint, page 19, lines 9-10, and page 25, line 7, as to Defendant Merced Community College District only.

In so far as the motion pertains to the individual Defendants, the motion is DENIED.

26CV-04129 Jason Ochoa vs Jeremy Branco

Order to Show Cause Re: Restraining Order

Appearance required. Proof of unsuccessful service of the notice of hearing on Respondent was filed August 24, 2026.

26CV-04619 Karen Marquez vs Payton Johnson

Order to Show Cause Re: Restraining Order

Appearance required. Proof of timely personal service of the notice of hearing on Respondent was filed September 2, 2026. A response was filed September 11, 2026, however it was not accompanied by a proof of service.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Judge Pro Tem Alexandria Carl
Courtroom 9

627 W. 21st Street, Merced

Thursday, September 17, 2026
10:00 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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23CV-04065	Lendmark Financial Services LLC vs. Tabbatha Browe, et al.
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Claim of Exemption – Michael Anthony Sanchez

Appearance required for judgment debtor.

24CV-03252	Patricia Bever vs. Erin May, et al.
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Status Hearing – Status of Default

Appearance required.

25CV-03596	Synchrony Bank vs. Sonia Piva
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Motion to Set Aside & Vacate Default Judgment and Request for Dismissal

The unopposed motion by plaintiff Synchrony Bank to vacate the default judgment entered on October 2, 2025, against defendant Sonia Piva and to dismiss the action with